

STATE OF NORTH CAROLINA

COUNTY OF VANCE

The Vance County Board of Commissioners met in regular session on Tuesday, July 6, 2021 at 6:00 p.m. in the commissioners' conference room, Vance County Administration Building, 122 Young Street, Henderson, NC. Those commissioners present were as follows: Chairman R. Dan Brummitt, Vice-Chairman Leo Kelly, Jr., Commissioners Carolyn Faines, Yolanda J. Feimster, Thomas S. Hester, Jr., Archie B. Taylor, Jr., and Gordon Wilder.

Absent: None.

Also present were County Manager Jordan McMillen, Finance Director Katherine Bigelow, County Attorney Jonathan S. Care, and Clerk to the Board Kelly H. Grissom.

Ms. Sandra Wilkerson, Chamber of Commerce, recognized the participants of Leadership-Vance 2020 who were present. The class was postponed last year due to COVID. The participants introduced themselves and stated their occupation and place of work. Chairman Dan Brummitt thanked the group for being present at the meeting and for taking an interest in the community.

Dr. Levy Brown, Chamber of Commerce Board Chair, recognized Commissioner Archie B. Taylor, Jr. for receiving the Chamber's 2020 Outstanding Citizen of the Year Award during the Chamber's virtual meeting last month. He stated that since the meeting was held virtually, he wanted Commissioner Taylor to be recognized in person as well. Commissioner Taylor was presented a plaque. He stated that he is very appreciative of this recognition and thanked the Chamber for this award.

The next item on the agenda was the annual meeting of the ABC Composite Board consisting of the Board of Commissioners, the Chair of the Board of Education, and the Mayor of the City of Henderson. Board of Education Chair Linda Cobb and Mayor Eddie Ellington were absent.

Mr. Arnold Bullock and Ms. Nancy Wilson had submitted letters seeking reappointment to the Vance County ABC Board for a three year term. Mr. Jerry Stainback had submitted a letter requesting to be appointed as Chair for a one year term. One letter was received by Judge J. Henry Banks requesting to be appointed as a member for a three year term. No other applications were received. Although Mayor Ellington was unable to attend the meeting, he did submit a letter affirming his support of Mr. Arnold Bullock and Judge J. Henry Banks, as well as Mr. Jerry

Stainback as Chair. Ms. Linda Cobb submitted a letter affirming her support of Mr. Arnold Bullock and Ms. Nancy Wilson.

Motion was made by Commissioner Thomas S. Hester, Jr. to appoint Jerry Stainback as chair of the ABC Board for a one year term. This motion was seconded by Commissioner Gordon Wilder and unanimously approved.

Motion was made by Commissioner Archie B. Taylor, Jr. to reappoint Arnold Bullock and appoint Judge J. Henry Banks to the Vance County ABC Board for three year terms. This motion was seconded by Commissioner Thomas S. Hester, Jr. and unanimously approved.

Cooperative Extension Director Turner Pride then introduced Ms. Pat Ayscue as the new Farmers Market Manager. Ms. Ayscue made a few remarks and thanked the board for this opportunity.

Mr. Frankie Nobles, Vance County Employee Engagement Team Chair, appeared before the board to recognize the new employee of the month. He noted that employees are nominated by their peers, and this month's recognition goes to Sherri Boylorn with the Vance County Finance Office. Her peers noted that she goes above and beyond her duties, is always willing to assist others in any way possible, and is loved by everyone. Ms. Boylorn will receive a \$100 gift card and a designated parking space for the month. Ms. Boylorn was presented with a certificate of appreciation and the board congratulated her on receiving this recognition.

As advertised, a public hearing was held to gain citizen input on a rezoning request for a parcel on Raleigh Road. Rhetsen Companies is the owner/applicant. Planning Director Keith Callahan stated that the request is to amend the zoning map and to rezone a portion of Parcel 0224 03005 (approximately two acres) from LI (Light Industrial) to GC1 (General Commercial) for a proposed retail store. Mr. Callahan stated that the Planning Board recommended approval of the rezoning on June 10, 2021.

As there was no one present who wished to speak on this matter, Chairman Dan Brummitt declared the public hearing closed.

Motion was made by Commissioner Gordon Wilder, seconded by Commissioner Thomas S. Hester, Jr., vote unanimous, to approve the rezoning request on the basis that it is reasonable and consistent with the county's land use plan by promoting tax and job base.

As advertised, a public hearing was held to gain citizen input on a rezoning request for 120 Louis Williams Road. Zachary and Tosha Beck are the owners/applicant. Planning Director Keith

Callahan stated that the request is to amend the zoning map and to rezone Parcel 0384 01009 from R30 (Residential Low Density) to AR (Residential Agricultural) for future recombination. Mr. Callahan stated that the Planning Board recommended approval of the rezoning on June 10, 2021.

As there was no one present who wished to speak on this matter, Chairman Dan Brummitt declared the public hearing closed.

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Carolyn Faines, vote unanimous, to approve the rezoning request on the basis that it is reasonable and consistent with the county's land use plan by promoting the county's agricultural character.

City Manager Terrell Blackmon and Recreation Director Kendrick Vann appeared before the board and provided an update on recreation activities. Mr. Blackmon provided information on the budget and Mr. Vann provided information on programs, athletics, aquatics, special events, etc. Chairman Brummitt stated that he was disappointed in the decrease in numbers of softball participants. He stated that just a few years ago, there were over 300 players and that has dropped to less than 100. He stated that he would like to know why this has happened. The board thanked Mr. Blackmon and Mr. Vann for their report.

Representatives from Trillium Health Resources were next on the agenda to encourage the board to choose their services over Vaya Health. Ms. Cindy Ehlers stated that with the consolidation of Vaya Health and Cardinal Innovations Healthcare, Trillium Health is interested in becoming Vance County's Local Management Entity – Managed Care Organization (LME-MCO) which would manage the care of beneficiaries who receive services for mental health, developmental disabilities and substance use disorders. She provided information on what Trillium offers and asked the board to consider Trillium during the transition.

Commissioner Gordon Wilder suggested that a committee be formed to review this request and make a recommendation to the board. County Manager Jordan McMillen stated that the county managers have been meeting on this matter and can provide a recommendation if that is what the board wants. He noted that the county is currently with Vaya. No action is needed unless the county decides to disengage with the Cardinal/Vaya consolidation and move to another provider.

#### Water District Board

Chairman R. Dan Brummitt called the Water District Board to order.



**This the 6<sup>th</sup> day of July, 2021.**

**R. Dan Brummitt (signed)**  
**R. Dan Brummitt, Chairman**  
**Vance County Board of Commissioners**

**ATTEST:**

**Kelly H. Grissom** (signed)  
**Kelly H. Grissom, Clerk to the Board**

Mr. Tim Carpenter and Mr. Logan Parsons with LKC Engineering were present and congratulated the county on this matter. They stated that they look forward to working with the county on this project.

The May 2021 monthly operations report was presented to the board for information.

Chairman Brummitt adjourned the water district board.

## County Manager's Report

*Semi-Annual Jail Inspection Report.* County Manager Jordan McMillen stated that the State conducted its periodic jail inspection on June 1, 2021 and submitted its report to the county. The report indicated an issue with three surveillance cameras as well as peeling paint in a section of the jail. Jail staff is in the process of resolving both issues and is handling the plan of correction with the state. Recommendation: Act to receive the report as information.

Motion was made by Commissioner Carolyn Faines to receive the jail inspection report as presented. This motion was seconded by Commissioner Gordon Wilder and unanimously approved.

*Bearpond VFD Lease Agreement.* Mr. McMillen provided a lease agreement with Bearpond VFD and stated that the agreement allows the county to house an ambulance and associated staff at the Bearpond station. He stated that this arrangement has been done by a verbal agreement since December 2009 that contained varied pricing based upon monthly cost factors at the station. The lease agreement contains a set monthly rate and has been agreed to by Bearpond VFD. The public safety committee previously reviewed the agreement and recommended its approval once Bearpond was agreeable. He recommended that the board approve the lease agreement with Bearpond Volunteer Fire Department for housing a county ambulance and associated staff.

Motion was made by Commissioner Gordon Wilder, seconded by Commissioner Carolyn Faines, vote unanimous, to approve the lease agreement with Bearpond Volunteer Fire Department for housing a county ambulance and associated staff.

*EMS 24/72 Schedule Transition Update.* Mr. McMillen noted that the board authorized staff to transition EMS to a 24/72 schedule in February. The transition remains delayed as staff continues recruiting an additional shift of workers to include one division chief and nine additional EMTs/Paramedics. Since March, a total of six full-time and seven part-time employees have been hired, although the department continues to have 18 full-time vacancies. The challenging job market has caused this process to take longer than expected. A division chief is now in place as of this past Friday, but the EMS department remains understaffed to make a successful transition to 24/72. The existing full-time staff would only be able to operate two ambulances and the Quick Response Vehicle (QRV) across each of the four shifts under the 24/72 schedule while being able to consistently operate three to four ambulances and the QRV under the current schedule. Senior EMS staff are recommending and the county manager intends to hold off on the transition until six additional EMT/Paramedic positions can be hired. Delaying the transition will ensure three ambulances and the QRV are operational under the new schedule ensuring citizens receive the greatest level of service.

*REO Properties Update.* Mr. McMillen provided an update on county and jointly owned property sales as requested by the board. The board was provided a map showing county and jointly owned properties currently for sale which are listed and continually updated on the county website. The strong real estate market has brought great interest, and multiple bidding wars are occurring for the purchase of jointly owned properties. He stated that the county and city worked together to demolish and remove 27 abandoned structures on county and jointly owned properties in the 2016-2017 timeframe. Since then focus has turned to marketing and selling properties with significant progress being made to return properties to the tax books. There are currently 130 city-county owned real estate owned (REO) properties with 27 for sale currently and 103 designated by the city to be retained for future development. This has been reduced from 159 jointly owned properties from three years ago. There are a total of 15 county owned REO properties for sale down from 52 three years ago. Thus far in 2021 a total of 13 county owned properties have been sold bringing in approximately \$30,000 in sales revenue and a total of 24 jointly owned properties have been sold bringing in approximately \$59,000 split with the city. As a comparison, eight

county properties and four jointly owned properties were sold in 2020. The county continues making great progress returning properties to the tax records.

Chairman Brummitt and Commissioner Taylor both questioned why the city wants to hold on to so many properties for redevelopment. Chairman Brummitt asked that the city provide a map showing these properties and an explanation on what the city plans to do with these properties.

County Attorney's Report

*REO Properties – Bid Acceptance Resolutions.* County Attorney Jonathan S. Care noted that during previous meetings, the board of commissioners approved the public sale process for 1262 Walters Street – Parcel 0051 12003, Ranes Drive Lot – Parcel 0055 01057, and High Street Lot – Parcel 0071 01009. The properties have been through the upset bid process and the board is now free to sell the properties or reject the offers.

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Archie B. Taylor, Jr., vote unanimous, to approve the following resolutions accepting the bids for 1262 Walters Street – Parcel 0051 12003, Ranes Drive Lot – Parcel 0055 01057, and High Street Lot – Parcel 0071 01009.

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**RESOLUTION ACCEPTING BID FOR  
COUNTY OWNED REAL PROPERTY**

**WHEREAS**, the Vance County Board of County Commissioners received an offer in the amount of **\$1,185.00** from **Veronica Antonio Nuez** for the purchase and sale of County owned real property, which is more particularly described below:

**1262 Walters Street, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0051 12003.**

**WHEREAS**, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **June 17, 2021** stating that said offer from **Veronica Antonio Nuez** in the amount of **\$1,185.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

**WHEREAS**, no upset bids were received within the statutorily prescribed time period.

**THEREFORE, BE IT RESOLVED** by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Veronica Antonio Nuez** in the amount of **\$1,185.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

**Adopted this the 6<sup>th</sup> day of July, 2021.**

**R. Dan Brummitt (signed)**  
**R. Dan Brummitt, Chairman**  
**Vance County Board of Commissioners**

ATTEST:

Kelly H. Grissom (signed)  
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION ACCEPTING BID FOR  
COUNTY OWNED REAL PROPERTY**

**WHEREAS**, the Vance County Board of County Commissioners received an offer in the amount of **\$1,500.00** from **Emma Marable** for the purchase and sale of County owned real property, which is more particularly described below:

**Ranes Drive Lot, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0055 01057.**

**WHEREAS**, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **June 17, 2021** stating that said offer from **Emma Marable** in the amount of **\$1,500.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

**WHEREAS**, no upset bids were received within the statutorily prescribed time period.

**THEREFORE, BE IT RESOLVED** by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Emma Marable** in the amount of **\$1,500.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

**Adopted this the 6<sup>th</sup> day of July, 2021.**

R. Dan Brummitt (signed)  
R. Dan Brummitt, Chairman  
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)  
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION ACCEPTING BID FOR  
COUNTY OWNED REAL PROPERTY**

**WHEREAS**, the Vance County Board of County Commissioners received an offer in the amount of **\$1,280.00** from **Darrell K. Wilkerson** for the purchase and sale of County owned real property, which is more particularly described below:

**Lots 3 and 4, Block 18, High Street, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0071 01009.**

**WHEREAS**, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **June 17, 2021** stating that said offer from **Darrell K. Wilkerson** in the amount of **\$1,280.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

**WHEREAS**, no upset bids were received within the statutorily prescribed time period.

**THEREFORE, BE IT RESOLVED** by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Darrell K. Wilkerson** in the amount of **\$1,280.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

**Adopted this the 6<sup>th</sup> day of July, 2021.**

**R. Dan Brummitt** (signed)  
**R. Dan Brummitt, Chairman**  
**Vance County Board of Commissioners**

**ATTEST:**

**Kelly H. Grissom** (signed)  
**Kelly H. Grissom, Clerk to the Board**

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*REO Properties – New Offers.* Attorney Care stated that new offers have been received for real properties located at 815 Water Street – Parcel 0069 04020 (two offers - \$7,595 and \$8,000); Rockspring Street Lot – Parcel 0078 06001; 695 Adams Street – Parcel 0079 05008; Booth Avenue Lot – Parcel 0084 03007; and 815 Harriett Street – Parcel 0087 02002. Attorney Care stated that the board needs to vote on whether or not to proceed with the sale by advertising for upset bids and recommended approval of the resolutions to begin the upset bid process for the properties. All of the properties except 815 Harriett Street are jointly owned with the City of Henderson, so any action will need to be contingent upon the city taking similar action. He suggested that the board take a separate action on 815 Water Street since two offers were received.

Motion was made by Commissioner Leo Kelly, Jr. to approve the upset bid process for real property located at Rockspring Street Lot – Parcel 0078 06001; 695 Adams Street – Parcel 0079 05008; Booth Avenue Lot – Parcel 0084 03007; and 815 Harriett Street – Parcel 0087 02002; contingent upon the City taking similar action. This motion was seconded by Commissioner Thomas S. Hester, Jr. and unanimously approved.

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**RESOLUTION AUTHORIZING UPSET BID PROCESS  
FOR SALE OF REAL PROPERTY  
Rockspring Street Lot, Henderson, NC 27536**

**WHEREAS**, Vance County owns certain real property with an address of **Rockspring Street Lot, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0078 06001**; and

**WHEREAS**, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

**WHEREAS**, the County has received an offer to purchase the real property described herein above in the amount of **\$2,053.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Life of Riches LLC**; and

**THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:**

- This the 6<sup>th</sup> day of July, 2021.**

**ATTEST:**

**Figure 1**

**RESOLUTION AUTHORIZING UPSET BID PROCESS  
FOR SALE OF REAL PROPERTY  
695 Adams Street, Henderson, NC 27536**

**WHEREAS**, Vance County owns certain real property with an address of **695 Adams Street, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0079 05008**; and

**WHEREAS**, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

**WHEREAS**, the County has received an offer to purchase the real property described herein above in the amount of **\$8,774.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Nahid Sanaei**; and

**WHEREAS**, **Nahid Sanaei** has paid the required deposit in the amount of **\$750.00** with her offer.

**THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:**

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.
3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
4. If a qualifying bid is received, a new notice of upset bid shall be published and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.
5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.
6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.
7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at a closing by a **Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.
8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time**.
9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 6<sup>th</sup> day of July, 2021.

**R. Dan Brummitt** (signed)  
**R. Dan Brummitt, Chairman**  
**Vance County Board of Commissioners**

ATTEST:

**Kelly H. Grissom** (signed)  
**Kelly H. Grissom, Clerk to the Board**

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**RESOLUTION AUTHORIZING UPSET BID PROCESS  
FOR SALE OF REAL PROPERTY  
Lots 13 & 14 Booth Avenue, Block B, Plat Book A Page 53, Henderson, NC 27536**

**WHEREAS**, Vance County owns certain real property with an address of **Lots 13 & 14 Booth Avenue, Block B, Plat Book A Page 53, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0084 03007**; and

**WHEREAS**, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

**WHEREAS**, the County has received an offer to purchase the real property described herein above in the amount of **\$1,440.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Omega T. Perry**; and

**WHEREAS**, **Omega T. Perry** has paid the required deposit in the amount of **\$750.00** with his offer.

**THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:**

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.
3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
4. If a qualifying bid is received, a new notice of upset bid shall be published and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.
5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.
6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.

7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at a closing by a **Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.
8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**
9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 6<sup>th</sup> day of July, 2021.

**R. Dan Brummitt** (signed)  
**R. Dan Brummitt, Chairman**  
**Vance County Board of Commissioners**

ATTEST:

**Kelly H. Grissom** (signed)  
**Kelly H. Grissom, Clerk to the Board**

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**RESOLUTION AUTHORIZING UPSET BID PROCESS  
FOR SALE OF REAL PROPERTY  
815 Harriett Street, Henderson, NC 27536**

**WHEREAS**, Vance County owns certain real property with an address of **815 Harriett Street, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0087 02002**; and

**WHEREAS**, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

**WHEREAS**, the County has received an offer to purchase the real property described herein above in the amount of **\$2,210.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Rosalinda Grady**; and

**WHEREAS**, **Rosalinda Grady** has paid the required deposit in the amount of **\$750.00** with her offer.

**THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:**

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.
3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.

4. If a qualifying bid is received, a new notice of upset bid shall be published and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.
5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.
6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.
7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at a closing by a **Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.
8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**
9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

**This the 6<sup>th</sup> day of July, 2021.**

**R. Dan Brummitt** (signed)  
**R. Dan Brummitt, Chairman**  
**Vance County Board of Commissioners**

**ATTEST:**

**Kelly H. Grissom** (signed)  
**Kelly H. Grissom, Clerk to the Board**

Motion was made by Commissioner Thomas S. Hester, Jr. to approve the highest bid for the upset bid process for real property located at 815 Water Street in the amount of \$8,000. This motion was seconded by Commissioner Carolyn Faines and unanimously approved.

**RESOLUTION AUTHORIZING UPSET BID PROCESS  
FOR SALE OF REAL PROPERTY  
815 Water Street, Henderson, NC 27536**

**WHEREAS**, Vance County owns certain real property with an address of **815 Water Street, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0069 04020**; and

**WHEREAS**, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

**WHEREAS**, the County has received an offer to purchase the real property described herein above in the amount of **\$8,000.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Life of Riches LLC**; and

**WHEREAS**, **Life of Riches LLC** has paid the required deposit in the amount of **\$750.00** with their offer.

**THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:**

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.
3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
4. If a qualifying bid is received, a new notice of upset bid shall be published and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.
5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.
6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.
7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at a closing by **a Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.
8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**
9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

**This the 6<sup>th</sup> day of July, 2021.**

**R. Dan Brummitt (signed)**  
**R. Dan Brummitt, Chairman**  
**Vance County Board of Commissioners**

ATTEST:

Kelly H. Grissom (signed)  
Kelly H. Grissom, Clerk to the Board

Consent Agenda

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Gordon Wilder, vote unanimous, to approve the following consent agenda items as presented: May 2021 Tax Refunds and Releases, departmental monthly reports, and the minutes of the June 7, 2021 regular meeting.

**TAX OFFICE REFUND AND RELEASE REPORT FOR MAY 2021**

| TAXPAYER NAME          | TAX YR | REAL | PERSONAL | SOLID WASTE FEE | REASON           |
|------------------------|--------|------|----------|-----------------|------------------|
| BLACKWELL EDWARD DUANE | 2020   | 0    | 55.30    | 0               | PERS PROP BILLED |
|                        |        |      |          |                 |                  |
| TOTAL                  |        | 0    | 55.30    |                 |                  |
| GRAND TOTAL            | 55.30  |      |          |                 |                  |

MONTHLY REPORTS: 911 Emergency Operations, Administrative Ambulance Charge-Offs, Cooperative Extension, EMS, Human Resources, Parks and Recreation, Planning and Development, Tax Collections and Veterans Service.

Miscellaneous

*Appointments.* The following appointments were presented to the board for consideration:

Henderson Planning Board – three year term  
Appoint Paul Crews, Jr. to fill vacant position.

Vance-Granville Community College Board of Trustees – four year term  
Two applications received for vacant position.  
- Jerry Ayscue and Carolyn Faines

Motion was made by Commissioner Archie B. Taylor, Jr. to appoint Paul Crews, Jr. to the Henderson Planning Board for a three year term to fill a vacant position. This motion was seconded by Commissioner Carolyn Faines and unanimously approved.

Motion was made by Commissioner Thomas S. Hester, Jr. to appoint Jerry Ayscue to the Vance Granville Community College Board of Trustees for a three year term. This motion was seconded by Commissioner Archie B. Taylor, Jr. The vote failed by a vote of ayes – three (3);

noes – four (4), with the dissenting votes being cast by Commissioners Brummitt, Faines, Feimster and Kelly.

Motion was made by Commissioner Yolanda Feimster to appoint Carolyn Faines to the Vance Granville Community College Board of Trustees for a three year term. This motion was seconded by Commissioner Leo Kelly, Jr. and unanimously approved.

Motion was made by Commissioner Gordon Wilder, seconded by Commissioner Thomas S. Hester, Jr., vote unanimous, to enter into closed session to discuss a legal matter.

Upon return to open session, motion was made by Commissioner Gordon Wilder to approve the bankruptcy plan with Purdue Pharma related to the county's opioid litigation lawsuit. This motion was seconded by Commissioner Archie B. Taylor, Jr. and unanimously approved.

Motion was made by Commissioner Thomas S. Hester, Jr. to approve the minutes of the June 7, 2021 closed session. This motion was seconded by Commissioner Archie B. Taylor, Jr. and unanimously approved.

As there was no further business, at 8:30 p.m., motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Carolyn Faines, vote unanimous, that the meeting be adjourned.

**Approved and signed August 2, 2021.**

**R. Dan Brummitt (signed)**  
**R. Dan Brummitt, Chairman**